

August 21, 2026, Civil Law & Motion Tentative Rulings

1. CU0001483 Susan Gabrielle vs. Phillip G. Conlon, Jr.

The Court received the joint status report filed by the parties on July 15, 2026. Appearances are required by the parties to discuss the status of listing of the property. The Court is favorably inclined to set a further review on Friday, September 18, 2026, at 9:00 a.m. in Department 6.

2. CU0001901 Heather Miles v. Michael Smallwood

Defendant Michael Smallwood is ordered to appear on August 21, 2026, 10:00 a.m., Department 6, to show cause why trial should not be set and/or why it should not proceed without him, and to show why Plaintiff's motion for an order deeming matters admitted against him should not be granted. Further, Defendant Michael Smallwood is ordered to appear at the August 21, 2026, hearing in one of three ways: personally, remotely (by means authorized by the Court), or via counsel.

At the hearing, the Court will set further proceedings regarding trial, and will rule on Plaintiff's motion to deem matters admitted as indicated in the previously posted tentative decision, unless it finds at hearing that there is justification and good cause to not set trial and/or rule on the motion.

At the hearing, the Court will seek verification that Michael Smallwood has retained counsel to represent him in this action, and that Michael Smallwood has executed a written instrument to appointing an agent under power of attorney to act on his behalf with respect to this action including trial thereon.

3. CU0001813 USA Bath California Remodeling, Inc. vs. David Sweat

Attorney James L. Arrasmith's motion to be relieved as counsel is continued on the Court's motion to September 18, 2026, at 10:00 a.m., in Dept. 6. Counsel shall give notice to his client and all parties.

Legal Standard

The Court has discretion to allow an attorney to withdraw, and such a motion should be granted provided that there is no prejudice to the client and it does not disrupt the orderly process of justice. *See Ramirez v. Sturdevant* (1994) 21 Cal.App.4th 904, 915; *People v. Prince* (1968) 268 Cal.App.2d 398, 403-407.

A motion to be relieved as counsel must be made on Judicial Council Form MC-051 (Notice of Motion and Motion), MC-052 (Declaration), and MC-053 (Proposed Order). Cal. Rules of Court, rule 3.1362(a), (c), (e). The requisite forms must be served "on the client and on all parties that have appeared in the case." Cal. Rules of Court, Rule 3.1362(d).